



PUBLIC & CONSTITUTIONAL LAW
LAW 1800, 2026-27, Section B
Prof. Kate Glover Berger
Class Schedule & Reading List - FALL

In the Fall Term, our course runs for the first nine weeks of the term. With the exception of one recorded lecture and any unforeseen changes, we meet on Thursdays from 9:30 to 12:30 pm in Room 2001. Our first class is Thursday, September 3, 2026 and our last class of the term is on Thursday, October 29, 2026.

(a) Important Fall Dates & Changes to the Regular Schedule

Event	Date
First class:	September 3, 2026 at 9:30, Room 2001
Assignment distributed:	October 5th at 8:30 am (through eClass)
Assignment due:	October 9th at 9:30 am (submit to online Osgoode dropbox) – Use Assignment number that starts with “A”.
No class:	October 15th (deemed Monday)
Recorded Lecture:	Posted to eClass in mid-October
Last class:	October 29, 2026 at 9:30, Room 2001
Review class:	November 26th, 10:30-12:30 pm, Room 2001
Exam:	November 30 th , 9:30-12:45, In-person, Open book (printed materials only). Use “F” exam number

Any changes to this schedule will be announced in class (if possible) and by email/eClass announcement.

(b) Course Materials

The reading list below sets out the specific topics we will cover and the required readings/materials for each class of the Fall Term. Our primary materials for this course are: (i) the required casebook; (ii) the text of the *Constitution Acts, 1867 to 1982*; and (iii) judicial opinions freely available online through the Supreme Court of Canada website and/or CanLII. Here is some additional information about each set of materials:

- i. **Casebook:** The required casebook for this course is: Richard Moon, Howie Kislwicz, and Asha Kaushal, eds, *The Canadian Constitutional Law Open Access Casebook*, 2d ed (CanLII, 2025). The online version can be found [here](#). A printable PDF version that includes only the required casebook readings for the Fall Term is posted on eClass. (Note that this PDF does not include required readings not found in the casebook.)
- ii. ***Constitution Acts, 1867 to 1982:*** Throughout the course, we will study provisions of the *Constitution Acts, 1867 to 1982*. The full text of these acts is freely available through the [Department of Justice website](#) and through [CanLII](#). I have posted a printable PDF version on eClass. There are also printed commercial versions available.

At the outset of the course, you should review the text of the *Constitution Acts* and then return to it regularly throughout the year. You are not expected to memorize the constitution or to understand it upon first reading. There is no need for this. Rather, reviewing the primary constitutional texts at the outset of our course is a chance to get a sense of the whole, including their scope, structure, exclusions, and so on. We will spend most of the course on specific provisions of the constitutional text, along with unwritten constitutional principles and structures addressed in the casebook and in judicial opinions. When we are studying a specific provision, it can be easy to lose sight of the constitutional project as a whole and the context in which the specific provisions and principles operate. Having a sense of the whole from the outset of the course helps with understanding the specifics. **At a minimum, for each topic we study, you should re-read the specific provisions of greatest relevance to the topic.**

- iii. **Judicial Opinions:** We will read many judicial opinions dealing with public and constitutional law in this course. For some topics, excerpts of the relevant cases are found in the casebook. For others, the relevant cases are not included in the casebook. You will find links to freely available online versions of these cases on eClass and the reading list will specify the paragraphs of the opinion for which you are responsible.

(c) Topics covered in the Fall

The Fall Term is organized around two major themes. The first part of the term will be spent on the sources, foundations, and institutions of public and constitutional law. In this section, we will study the nature and parts of the Canadian constitution; the constitution's written, unwritten, and architectural components; the core institutions of governance in the Canadian state; and the law governing the design, role, and relationships of these institutions. In the second part of the term, we will focus on modern federalism in Canada.

We will study the way in which legislative power is distributed between the federal and provincial legislatures in Canada and the constitutional implications of a federal constitution. Across the term as a whole, we will ask how current Canadian constitutional law reflects choices that are made about who and what to include and exclude, and the impacts of those choices, with a particular focus on inclusion of, exclusion of, and impacts on Indigenous peoples, communities, and rights.

The Winter Term will cover two major themes: 1. Indigenous Peoples and Canadian Constitutionalism; and 2. The Charter of Rights and Freedoms. A reading list for, and further details about, the Winter Term will be posted at the end of the Fall Term.

(d) Reading List

As noted above, the reading list below sets out the specific topics we will cover and the required readings/materials for each class of the Fall Term. Please note that this reading list may change as we move through the term, depending on our pace, developments in the law, and/or interests that emerge within the class. Any updates or revisions will be announced in class and posted on eClass.

When setting the reading for each class, I am mindful that you have reading for all your courses. I am also mindful that two objectives of this course are to help you learn the foundations of Canadian constitutional law, and to help you hone your skills of careful and deep reading. Thus, the volume of reading for each class will vary, with some weeks being quite light and others more demanding.

NOTES:

1. All chapters and sections in the reading list below refer to the required casebook, unless indicated otherwise.
2. In the event of a discrepancy between this document and the reading set out for each class on eClass, the eClass posting should be taken as authoritative.

SOURCES, FOUNDATIONS AND INSTITUTIONS OF PUBLIC & CONSTITUTIONAL LAW		
Date	Topic	Materials
Sept 3	Welcome and Overview	Syllabus In Chapter 1: - section 2

	Introduction to the Constitution and the Foundations of Public & Constitutional Law	- section 3 (up to the end of section 3.3.1 (excluding the 3.3.1.1)) Watch: SSHRC Storytellers: Jeremy Webber (link on eClass): https://www.youtube.com/watch?v=2FxoUQbJku4 Watch: Revitalizing Canada's Indigenous Constitution, John Borrows (link on eClass): https://www.youtube.com/watch?v=CydzCauzCZA
Sept 10 & 17	Principles and Architecture of the Constitution	<i>Quebec Secession Reference</i>, [1998] 2 SCR 217 at paras 1-2, 32-82, 104 <i>Toronto (City) v Ontario (AG)</i>, 2021 SCC 34 at paras 1-13, 48-69. In Chapter 3: - section 13 (plus the four paragraphs leading up to section 13) <i>Reference re An Act respecting First Nations, Inuit and Métis children, youth and families</i>, 2024 SCC 5 at paras 1-29, 104-110, 119-137.
Sept 24	The Judiciary & the Administrative State	In Chapter 3: - section 1 - section 2 - section 4 - section 7 (introductory paragraphs, plus 7.1 and 7.2 only) <i>Democracy Watch v Canada (AG)</i>, 2026 SCC 28 at para 1-14, 37-44, 63-85.

MODERN FEDERALISM & THE DIVISION OF LEGISLATIVE POWERS

Date	Topic	Materials
Oct 1	<u>Validity of Legislation</u> Characterization (Pith & Substance) Classification I (Double Aspect Doctrine)	In Chapter 6: - section 1 - section 2 (Introductory paragraphs, 2.2, and 2.3 only) In Chapter 6:

		- section 3 (introductory paragraphs and 3.1)
October 5	Assignment released at 8:30 a.m. through eClass	
October 8	Classification II (Ancillary Powers Doctrine) <u>Operability of Legislation</u> The Paramountcy Doctrine	In Chapter 6: - section 5 (introductory paragraphs, 5.1 and 5.2 only) In Chapter 6: - section 7 (introductory paragraphs, 7.2, 7.3, 7.4, and 7.6 only)
Oct 9	Assignment due at 9:30 am (please submit through the online Osgoode Dropbox – USE “A” assignment number)	
Oct 15	NO CLASS (Deemed Monday)	
RECORDED LECTURE: Mid-October Recorded lecture (make-up class) (posted on eClass)	<u>Applicability of Legislation</u> The Doctrine of Interjurisdictional Immunity	In Chapter 6: - section 6 (introductory paragraphs and section 6.4 only)
Oct 22	Criminal Law, Morality and Public Order	In Chapter 8: - section 1 - section 2 (introductory paragraphs, 2.1, 2.3, and 2.5 only) - section 3 (introductory paragraphs, 3.1.2, 3.2, and 3.4 only)
Oct 29	Section 91(24)	In Chapter 11: - section 1 - section 4 - section 5
Nov 26	Exam Review: 10:30-12:30 pm (Room TBD)	

Nov 26	**Part of exam fact pattern released (via eClass announcement): 12:30 pm
Nov 30	Exam, 9:30-12:45, open book (print materials only), in person